

		Defendants also argue the work done by Mr. Hunter “ordinarily requires counsel to learn how the represented entity is organized, who controls relevant policies, what records exist and where they are maintained, how the client evaluates employees and witnesses, what defenses and discovery positions it adopts, and how it evaluates exposure and settlement.” (Reply at 4:3-5) While such may “ordinarily” occur, there is no declaration that such took place in this case. Based on evidence submitted, Defendants have failed to show that any confidential information learned through Hunter’s prior representation would be at issue in this case. Moreover, Hunter submits evidence in opposition showing that “each representation concerned a different facility, resident, factual record, alleged injury and subject matter.” (Hunter Decl. ¶5; see also ¶¶7, 8, 10-13 22) Plaintiff’s objections to the declaration of Laura Sitar are OVERRULED. Plaintiff’s objections to the declaration of Cadmus Wang are SUSTAINED (hearsay, speculation, foundation, improper opinion). For the foregoing reasons, the motion is DENIED. <i>Plaintiff shall give notice.</i>
4.	Pham v. Pham Lopez 25-1504410	Before the court are the following two motions: (1) motion for leave to amend complaint brought by plaintiff Hien Minh Pham (Plaintiff); and (2) motion to expunge lis pendens filed by defendants Michelle Ngo Pham Lopez, Francisco Humberto Lopez, Thuy Thanh Vorpahl, and Travis D. Vorphal (collectively, Defendants). As set forth below, motion 1 is GRANTED. Motion 2 is CONTINUED to October 15, 2026, at 1:30 p.m. in Department C20. Motion No. 1: Motion for Leave to Amend Courts are bound to apply a policy of great liberality in permitting amendments to the complaint “at any stage of the proceedings, up to and including trial,” absent prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761; see also, <i>Code Civ. Proc.</i>, § 473(a)(1).) Plaintiff has shown the interests of justice support granting the motion as the amendments appear necessary to a complete determination of the action. Plaintiff was diligent in seeking amendment as this motion was filed approximately one month after Plaintiff retained counsel. Given counsel needed time to consult with his client and familiarize himself with the case, filing this motion one month after counsel was retained does not seem unreasonable.

The Court does not find the FAC to be a sham pleading. Plaintiff sufficiently explains the changes in theory from the initial complaint. (Pham Reply Decl., ¶ 19.)

Defendants argue the amendments will prejudice them because they drafted their motion to expunge *lis pendens* based on the theory alleged in the original pleading. However, Defendants were served with the *lis pendens* in September 2025 but waited eight months to file their motion to expunge *lis pendens*. Had Defendants been more diligent in filing their motion to expunge, the costs complained of could have been avoided.

Defendants also claim prejudice due to having to “redo” discovery. However, at the time this motion was filed discovery had not yet commenced. (Ho Decl., ¶ 5.) Defendants’ opposition shows discovery did not get underway until May 26, 2026, after this motion was filed. Defendants were thus aware of Plaintiff’s new theory at the time discovery commenced. They offer no explanation as to why their discovery efforts did not focus on this theory as well. In any event, to avoid any potential prejudice, the Court will permit the parties to engage in further discovery regarding the substance of the amendments.

Regarding Defendants’ argument pertaining to the lack of verification, Plaintiff asserts in the reply that she will serve and file the proposed amended complaint with a signed verification as required. (Ho Decl., ¶ 12.) In terms of Defendants’ argument that the proposed pleading fails to state valid causes of action, these issues are more suitably addressed by demurrer or other appropriate proceedings. (See *Kittredge Sports Co. v. Sup.Ct. (Marker, U.S.A.)* (1989) 213 Cal.App.3d 1045, 1048 [“[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.”].)

For the same reasons discussed above, Defendants’ request for an order that Plaintiff pay \$21,289 in fees incurred in drafting the motion to expunge *lis pendens*, plus the costs of redoing discovery and depositions, is denied.

Accordingly, the motion for leave to file a first amended complaint (FAC) is **GRANTED**.

Plaintiff is to separately file the FAC within 5 days of the date of this order.

Motion No. 2: Motion to Expunge Lis Pendens

This motion is directed at the real property claim alleged in the initial complaint. Given the ruling to grant Plaintiff leave to file an amended complaint, once the FAC is filed, the original complaint will no longer be the operative pleading.

		The Court will thus CONTINUE the hearing on the motion as stated above to allow Plaintiff to file the FAC. The Court will then rule on the motion based on the operative FAC. The parties are permitted to file supplemental briefs to address the real property claim as alleged in the FAC. Plaintiff's supplemental brief is due on or before October 1, 2026. Defendants' supplemental brief is due on or before October 8, 2026. <i>Plaintiff shall give notice of these rulings.</i>
5.	Potter v. Gustafson 26-1554580	Defendant Dicker & Dicker, LLP's ("Firm") Special Motion to Strike ("Motion") plaintiff Jeffrey Potter's ("Plaintiff") Complaint is GRANTED in part and DENIED in part. As an initial note, the court recognizes Plaintiff's ongoing allegation that Firm did not serve the Motion on Plaintiff's counsel. This hearing previously came before the court on 07/30/26 and Plaintiff was given the opportunity to continue the hearing to provide additional time for Plaintiff to prepare an opposition. Plaintiff selected that option and was able to file a timely opposition. The court will therefore proceed on the merits. Firm moves to specially strike the complaint pursuant to <i>Civ. Proc. Code § 425.16</i>. In such motions a plaintiff's claim must 1) arise out of a defendant's protected speech or petitioning; and 2) lack even minimal merit. (<i>Navellier v. Sletten</i> (2002) 29 C4th 82, 88-89 ("<i>Navellier</i>"); <i>Jarrow Formulas, Inc. v. LaMarche</i> (2003) 31 C4th 728, 733.) "Only a cause of action that satisfies both prongs of the anti-SLAPP statute-<i>i.e.</i>, that arises from protected speech or petitioning and lacks even minimal merit-is a SLAPP, subject to being stricken under the statute." (<i>Navellier, supra</i>, 29 Cal. 4th at 89.) A) The Complaint Arises Out of Protected Activity "A claim arises from protected activity when that activity underlies or forms the basis for the claim. [Citations.] Critically, "the defendant's act underlying the plaintiff's cause of action must itself have been an act in furtherance of the right of petition or free speech." [Citations.] "[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute." (<i>Navellier, supra</i>, 29 Cal.4th at 89, 124 Cal.Rptr.2d 530; see <i>City of Cotati</i>, at p. 78, 124 Cal.Rptr.2d 519 [suit may be in "response to or in retaliation for" protected activity without necessarily arising from it].) Instead, the focus is on determining what "the defendant's activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning." [Citation.] "The only means specified in section 425.16 by which a moving defendant can satisfy the ['arising from'] requirement is to demonstrate that the defendant's conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e)...." [Citation.] In short, in ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by the defendant supply those